

1607
Nov. 20

Adjourned

twooe the Judges woulde aduyse before they woulde delyuer there resolution, for it was a generall case & vsed by moste of the sheriffes of Englaunde; & so the cause was referred to another daye.¹

[p. 324]

LEWES
v.
LANY
and others
—
Taking
bribes, and
riot

Lord Coke
speaks in
favour of the
defendants

Judges must
not take fees

except in
some special
cases

Commis-
sioners may
take rewards
for their
trouble and
travelling
expenses, if
not done
corruptly

Acquittal

'Another Cause of hearinge, Lewes, pl., & Lany² & Goldsmithe of Graie's Inne, 2 Counsellors at the lawe, Fisher, an attornie at the Lawe, & others, defendautes, for that they beinge Commissioners vpon the statute of Bankrupts had corruptelye taken rewardes & caryed them-selues vndulye in th'executinge of the Commission: vpon there aunsweares yt appeared that they had trauayled & bestowed many dayes & tooke greate paines to execute the Commission, & after all was ended Lany had 5^{li}, Goldsmithe 5^{li}, & Fisher 12^{li}, to beare there rydinge Charges, & for there paines: & before any proffe was reade, the Lo. Coke spake very muche in the Commendacion of Lany & Goldsmithe, & it were harde to nippe them thus in the budde; he neuer hearde nor knewe but they were honeste men, hopefull & lykelye to proue good members to there Cuntryes; & for generall Judges of the lande, they can take nothinge, eyther before or after, for they haue there Fee of the kinge; yet in speciall cases some Fees are allowed them by the parties, as in a specyall assise, or in errors in london; but Commissioners, put in truste & not sworne, yf they Contracte not or bargaine Corruptlye before hande for some greate rewarde or Fee, & so that be an occasyon to demeasne themselues partiallye or corruptelye or affectionatelye in execution of that truste, he was of opinion that by lawe they may well take rewarde for there trauelle & paines, & it was no offence; (yet he was sorrye they had taken anythinge). But all the Cowrte was Cleare of opinion that yt was no offence, but iustifiable by the

¹ See a cross bill between the same parties, *ante*, p. 335.

² John Lany, eld. son of John Lany, Lent Reader of Gray's Inn, was adm. there 1590-1; John L. the father was adm. 1567. The son is probably the one mentioned in the

text, as Coke speaks of Lany and Goldsmith as though they were young men. There were several Goldsmiths of Gray's Inn about this time, and it is impossible to identify the one here referred to.